

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
CHARISMA STRONG and JAMES RODGERS,

Plaintiffs,

- against -

THE CITY OF NEW YORK; NEW YORK CITY POLICE
OFFICER BRIAN LYONS of the 103RD PRECINCT;
DETECTIVE BARRY of the 103rd PRECINCT, POLICE
OFFICERS "JOHN DOE" 1-6, Individually and in their
official capacity,

Defendants.

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Index No.:

SUMMONS

Plaintiff designates Queens
County as the place of trial.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Queens County and is against
the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 28, 2017

Yours etc.

_____/s/_____
Christopher H. Fitzgerald
Attorneys for Plaintiffs
CHARISMA STRONG and JAMES RODGERS
233 Broadway, Suite 2348
New York, NY 10279
(212) 226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

POLICE OFFICER BRIAN LYONS
103rd Precinct
168-02 91st Ave
Jamaica, NY 11432-5229

DETECTIVE BARRY
103rd Precinct
168-02 91st Ave
Jamaica, NY 11432-5229

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
CHARISMA STRONG and JAMES RODGERS,

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK; NEW YORK CITY POLICE
OFFICER BRIAN LYONS of the 103RD PRECINCT;
DETECTIVE BARRY of the 103rd PRECINCT, POLICE
OFFICERS "JOHN DOE" 1-6, Individually and in their official
capacity,

Defendants.

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Plaintiffs, by their attorneys, THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That on March 31, 2017, and at all times herein mentioned, Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. That on June 22, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
3. That this action is commenced within a year and 90 days from this incident.

4. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including Police Officer Brian Lyons and Detective Barry of the 103rd Precinct.
5. That on March 31, 2017, the Plaintiffs CHARISMA STRONG (hereinafter “STRONG”) and JAMES RODGERS (hereinafter “RODGERS”) had not committed any crime.
6. That at approximately 6:20 a.m. on March 31, 2017 Plaintiffs CHARISMA STRONG and JAMES RODGERS were lawful occupants of the apartment located at 107-16 160th Street, Apt. 1A, County of Queens, City and State of New York. Plaintiff STRONG was visibly and obviously pregnant at the time.
7. Both Plaintiffs were asleep when a group of approximately 8 to 10 officers, including, but not limited to, defendant Police Officer BRIAN LYONS, and defendant Detective BARRY, equipped with shields and automatic weapons, entered the claimant’s bedroom, and proceeded to assault and batter both claimants.
8. During this incident, Plaintiff STRONG was forcibly pulled by her arm and thrown to the ground on her stomach. Ms. STRONG tried to turn on her side in an effort to protect her stomach, each time announcing, “I’m pregnant.”
9. On each attempt by claimant Strong to reposition herself, an officer, whose identity is unknown at this time, took his boot, placed it on the back of claimant Strong, applied his body weight and forced her down onto her stomach, causing visible bruising to her stomach. Upon information and belief, this officer repeated this at least 7 times during this incident.

10. In the same moments, plaintiff RODGERS was pulled from his bed onto the floor by his hair.
11. He was forced to his knees and subjected to observing the assault on his pregnant girlfriend. Plaintiff RODGERS pleaded with the officers to consider the health of Ms. STRONG and his unborn child.
12. Plaintiff RODGERS, in an attempt to diffuse tensions, explained that his brother is a police officer. Instead, the officers responded by saying “fuck your brother,” and upon information and belief, an officer replied, “we’ll kill you.” He was placed in handcuffs which were tightened to the point of inflicting severe pain to the wrist and forearm.
13. Plaintiff RODGERS was then arrested and charged with Criminal Possession of a Controlled Substance in the Third Degree (PL 220.16-12), Resisting Arrest (PL 205.30), Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03), and Unlawful Possession of Marihuana (PL 221.06) Docket #CR-011982-17QN.
14. On May 4, 2017, plaintiff RODGERS received an Adjournment in Contemplation of Dismissal.
15. The alleged “no knock” warrant signed by Hon. Judge Guarino and relied upon by the NYPD officers authorized a search and seizure of a different location than that occupied by claimants. The Claimants reside at **107-16 160th Street**, whereas the warrant—upon information and belief—indicates a search of the residence at **107-15 160th Street**.
16. This willful indifference to a crucial element of the warrant amounted to an egregious violation the rights of the occupants of the apartment, surpassed only be the disgraceful conduct of the officers towards an innocent, visibly pregnant woman.

17. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.
18. No acts on the part of plaintiffs RODGERS or STRONG, contributed to the occurrence alleged herein in any manner whatsoever.
19. As a result of the intentional, reckless and negligent acts of the defendants, plaintiff suffered loss of liberty; severe anxiety, humiliation, and embarrassment; damage to personal reputation; apprehension, fear and distrust of the police; physical, emotional and psychological trauma; and violations of rights under the U.S. and New York Constitutions, and applicable statutory and case law.
20. That by reason of the foregoing, Plaintiffs CHARISMA STRONG and JAMES RODGERS have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIRST CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT UNDER STATE LAW

21. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
22. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority of the NEW YORK CITY POLICE DEPARTMENT and its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.

23. At the aforementioned times and locations, plaintiffs were detained and held under the imprisonment and control of the defendants LYONS, BARRY, and "JOHN DOE" 1-6 under false pretenses.
24. At the aforementioned times and locations, due to the actions of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the plaintiff without warrant, authority of law or probable cause therefore.
25. That the acts and conduct on the part of the individual defendants constituting the false arrest and false imprisonment consisted in part of the following: unlawfully and intentionally detaining and confining plaintiffs against their will and without their consent; unlawfully and intentionally detaining and confining plaintiffs without privilege, probable cause or valid legal process; unlawfully detaining and confining plaintiffs through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiffs; unlawfully arresting plaintiff and placing her in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of plaintiffs.
26. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
27. That plaintiff was conscious of the confinement.
28. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury

to personal reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.

29. By the actions described above, the individual and municipal defendants caused plaintiff to be falsely arrested and/or falsely imprisoned plaintiff without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the law of the Constitution of the State of New York.

30. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and his standing within his community.

SECOND CLAIM FOR RELIEF:
NEGLIGENCE

31. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

32. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.

33. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and his standing within his community.

THIRD CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,

SUPERVISION and TRAINING of LYONS, BARRY, and "JOHN DOE" 1-6

34. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

36. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

FOURTH CAUSE OF ACTION:
ASSAULT and BATTERY UNDER NEW YORK STATE LAW

37. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. On March 31, 2017, Defendants LYONS, BARRY, and "JOHN DOE" 1-6 intentionally made physical contact with plaintiffs.

39. This physical contact was violent, offensive, and without plaintiffs' consent.

40. This contact was without provocation.

41. This violent physical contact caused severe physical and psychological injuries to plaintiffs.

42. Defendants LYONS, BARRY, and "JOHN DOE" 1-6 acted voluntarily and intentionally, and with the purpose of physically harming the plaintiffs.

43. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 acted with the intent to cause plaintiff physical harm, and to harass, annoy or alarm plaintiff.

44. Defendant the CITY OF NEW YORK is vicariously liable for the actions of Defendants LYONS, BARRY, and “JOHN DOE” 1-6 as these individual defendants were acting in furtherance of NYPD business and within the scope of NYPD authority.

FIFTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

45. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

46. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 conduct of March 31, 2017 was shocking and outrageous, exceeding all reasonable bounds of decency.

47. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 conduct was intentional, and with the purpose to cause plaintiff severe emotional distress.

48. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 acted voluntarily, and with the desire to cause plaintiff severe emotional distress.

49. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 conduct was reckless, and with an utter disregard for the consequences that followed.

50. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 struck, shoved, kicked or otherwise subjected plaintiffs to physical contact.

51. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 acted with the intent to cause plaintiffs physical harm, and to harass, annoy or alarm plaintiffs.

52. Defendants LYONS, BARRY, and “JOHN DOE” 1-6 conduct has caused plaintiffs severe emotional distress.

54. At all times mentioned herein, the CITY OF NEW YORK is responsible for the plaintiff's injury and damages as LYONS, BARRY, and "JOHN DOE" 1-6, was acting in furtherance of NYPD business and within the scope of NYPD authority.

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Yours, etc.

/s/

Christopher H. Fitzgerald
Attorneys for Plaintiff(s)
CHARISMA STRONG and JAMES RODGERS
233 Broadway, Suite 2348
New York, NY 10279
212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for plaintiffs CHARISMA STRONG and JAMES RODGERS. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, New York
June 28, 2018

/s/

CHRISTOPHER H. FITZGERALD
Counsel for Plaintiffs